IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.
Plaintiffs,
vs.
MARC M. MOSZKOWSKI
Defendant.

Case No.: 2018 CA 000543
Division: "E"

DEFENDANT'S REQUEST FOR EMERGENCY CONSIDERATION OF SUPPLEMENTAL DECLARATION (PART II – SALARY MISREPRESENTATION, USURIOUS LOAN, AND COLLUSIVE FOREIGN SEIZURE)

COMES NOW Defendant, Marc Moszkowski, pro se, and respectfully submits the attached Supplemental Declaration (Part II) for emergency consideration prior to the entry of Final Judgment. This Declaration details a second, distinct episode of material misconduct by Plaintiff DeepGulf, Inc. and its Chairman Rustin Howard, directly relevant to the financial claims asserted by Plaintiffs in this case.

As described in the attached Declaration, in 2013 Defendant assigned $125,000 in net emoluments from a foreign consulting assignment to DeepGulf in order to cover unpaid wages. Instead of applying those funds toward Defendant's owed salary, Howard used the money for unrelated expenses—including office rental and staff salaries—while simultaneously characterizing a $50,000 advance wired just weeks earlier as a personal loan arranged with a co-shareholder. Defendant never communicated with the co-shareholder (David Rumsey), and was falsely assured by Howard for over four years that no repayment would be demanded.

In 2018, after Defendant raised governance concerns, this alleged "loan" was weaponized in a French court by the same co-shareholder, resulting in a default judgment, lien, and imminent judicial sale of Defendant's only home and seizure of his bank accounts—despite documentary proof that the original obligation had been fulfilled and mischaracterized.

This collusive and retaliatory litigation, based on a fictitious debt and internal misappropriation of assigned funds, goes to the heart of Plaintiff's credibility and equitable standing in this action. To allow Plaintiffs to recover damages based on this narrative—without considering their own role in engineering the alleged harm—would constitute a grave miscarriage of justice.

WHEREFORE, Defendant respectfully requests that the Court accept and review the attached Supplemental Declaration (Part II) on an emergency basis, prior to entry of any Final Judgment.

Respectfully submitted this 11th day of July, 2025.

Marc Moszkowski, Pro Se
Email: m.moszkowski@deepgulf.net
Le Verdos
83300 Châteaudouble, France

M. Moszkowski

CERTIFICATE OF SERVICE

I hereby certify that, on this 11th day of July, 2025, a copy of this Request has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

M. Moszkowski

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.
Plaintiffs,
vs.
MARC M. MOSZKOWSKI
Defendant.

Case No.: 2018 CA 000543
Division: "E"

SUPPLEMENTAL DECLARATION OF MARC MOSZKOWSKI
(PART II – SALARY MISREPRESENTATION, USURIOUS LOAN, AND COLLUSIVE FOREIGN SEIZURE)

I, Marc Moszkowski, respectfully submit this Supplemental Declaration to detail a second and distinct aspect of DeepGulf, Inc.'s bad-faith conduct and retaliatory litigation. This statement supplements the Declaration filed on July 10, 2025, which concerned systemic H1-B wage violations and the retaliatory Florida suit.

This second statement concerns the deliberate recharacterization of due salary as a personal loan, followed by a collusive foreign lawsuit and property seizure, despite the fact that I had assigned the full emoluments from my external consulting assignment to DeepGulf for the express purpose of covering those unpaid wages.

I. Salary Due, Yet Transformed into a Loan Without Consent

1. In mid-2013, while DeepGulf was in ongoing default of its salary obligations to me, I accepted a private engineering and consulting assignment with a French petroleum company. The work involved offshore and onshore engineering in Singapore and Benin (Central Africa), beginning on June 24, 2013.

2. All associated travel, business-class flights, accommodation, and incidental expenses were fully covered by the client. The net emoluments—approximately $125,000—were assigned in good faith to DeepGulf, Inc., with the intent that the company would use those funds to satisfy past-due salary obligations.

3. On June 4, 2013, just three weeks prior to the assignment's start, Rustin Howard personally wired $50,000 to my French bank account, labeling it as a “personal loan.” In reality, this was intended to substitute—at least in part—for salary DeepGulf had failed to pay.

4. This so-called “loan” was arranged privately between Howard and shareholder David Rumsey. I never had any direct communication with Rumsey. The alleged loan agreement bore an electronically affixed signature and typed disclaimers—elements which are not legally valid under French law, and which would have been inadmissible had I been permitted to contest the case.

II. Concealment and False Reassurance

5. For over four years, Howard repeatedly assured me that the issue was resolved and that the “loan” was merely an accounting convenience between himself and Rumsey, who he said owed him significant funds. He emphasized that I owed Rumsey nothing whatsoever and had no reason for concern.

6. During the same period, I had already assigned $125,000 in earnings to DeepGulf, specifically for the purpose of satisfying my salary obligations. These funds should have extinguished any alleged “loan.” Instead, discovery years later revealed that the money was used by Howard to cover his personal office rental, the salaries of his assistants, and other unrelated corporate expenditures. I received no salary compensation in return**.**

7. Had the $50,000 been a legitimate loan, Howard could and should have offset it within weeks against the funds I had provided. His failure to do so—combined with the misuse of those funds—confirms this was never a bona fide loan, but rather a usurious recharacterization of a due salary and a diversion of assigned funds.

III. Orchestrated Foreign Litigation

8. In 2018, after I publicly questioned DeepGulf's governance and finances, Rumsey abruptly filed suit against me in a French court, demanding repayment of the loan.

9. I secured legal representation on credit and the claim was initially dismissed in summary judgment. However, Rumsey filed suit again. This time, I was unable to obtain representation, as pro se defense is not permitted in France, and I lacked the means to retain counsel. Rumsey obtained a default judgment, using the same forged and unconsented "loan agreement," and immediately registered a lien against my French bank accounts and ancestral home.

10. This legal action, instigated and directed by Howard, weaponized a fictitious debt—one that he had both fabricated and concealed for years—in flagrant breach of fiduciary duty and ethical standards.

IV. Conclusion

This second fraudulent episode demonstrates that:

- DeepGulf defaulted on its certified salary obligations under U.S. law;
- Howard disguised a portion of the unpaid salary as a loan arranged with a co-shareholder;
- I assigned $125,000 to DeepGulf during the same period, specifically to satisfy part of those salary obligations;
- None of the $125,000 amount was applied to offset the alleged $50,000 "loan";
- Howard misused the funds for unrelated personal and corporate expenses;
- Rumsey subsequently weaponized the fabricated “loan” to obtain a fraudulent foreign judgment, resulting in the seizure of my only remaining asset—my home—and my bank account.

This is not a private misunderstanding—it is part of a coordinated and deliberate pattern of fraudulent misrepresentation, resulting in unjust enrichment, retaliatory litigation, and irreparable personal harm to the undersigned.

Respectfully submitted this 11th day of July, 2025.

Marc Moszkowski, Pro Se
Email: m.moszkowski@deepgulf.net
Le Verdos
83300 Châteaudouble, France

CERTIFICATE OF SERVICE

I hereby certify that, on this 11th day of July, 2025, a copy of this Declaration has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.